D.B. Power Ltd vs Central Electricity Regulatory ... on 18 August, 2020

IA NO. 128 OF 2019 IN
APPEAL NO. 225 OF 2018

COURT-I
IN THE APPELLATE TRIBUNAL FOR ELECTRICITY
(Appellate Jurisdiction)

IA NO. 128 OF 2019 IN
APPEAL NO. 225 OF 2018

Dated: 18thAugust, 2020

Present: Hon'ble Mrs. Justice Manjula Chellur, Chairperson
Hon'ble Mr. Ravindra Kumar Verma, Technical Member

In the matter of:
D.B. Power Ltd.
having its registered office at:
Office Block 1A, 5th Floor,
Corporate Block, DB City Park,
DB City, Arera Hills,
Opposite MP Nagar, Zone-I,
Bhopal-462016
(Through its Authorized Signatory Sh. Vikas Adhia) ...Appellant(s)

Versus

1. Central Electricity Regulatory Commission
3rd and 4th Floor, Chanderlok Building
36, Janpath, New Delhi - 110 001
Through its Secretary .... Respondent No.1

2. Tamil Nadu Generation and Distribution
Corporation Limited
6th Floor, Eastern Wing
144, Anna Salai,
Chennai - 600002, Tamil Nadu
Through its Chairman/ Managing Director .... Respondent No.2

3. Prayas (Energy Group)
Prayas (Energy Group), Unit II A & B,
Devgiri, Joshi Railway Muesum Lane,
Kothrud Industrial Area, Kothrud,
Pune, Maharashtra-411038
Through its Secretary .... Respondent No.3

4. Rajasthan Urja Vikas Nigam Ltd.
Vidyut Bhawan, Janpat,
Jyothi Nagar,
Jaipur - 302005
Through its Chief Engineer .... Respondent No.4

5. PTC India Limited,
Having its office at 2nd floor,
NBCC Tower, 15 BhikajiCama Place,
New Delhi - 110066,
Through its Director - Marketing .... Respondent No.5

Counsel for the Appellant(s) : Mr. Deepak Khurana
Mr.Tejasv Anand

Counsel for the Respondent(s) : Mr. G. Umapathy
Mr. Vallinayagam for R.2

Ms. Ranjitha Ramachandran
Ms. PoorvaSaigal
Ms.AnushreeBardhan
Mr. Shubham Arya
Mr. Arvind Kumar Dubey for R.3

Mr. Aashish Anand Bernard
Mr. ParamhansSahani for R.5

ORDER

PER HON'BLE MR. RAVINDRA KUMAR VERMA, TECHNICAL MEMBER

1. This is an Application seeking amendment of Appeal being Appeal No. 225 of 2018 filed by the Appellant which is pending for consideration before this Tribunal.

2. The learned counsel appearing for the Appellant and also Mr. G. Umapathy, learned counsel arguing for Respondent No.2/Discom IA NO. 128 OF 2019 IN APPEAL NO. 225 OF 2018 submitted that the IA No. 128 of 2019, filed in Appeal no. 225 of 2018, for amendment of appeal is similar in all aspects with the amendment application being IA No. 129 of 2019 filed in Appeal No. 253 of 2018 titled "DB Power Limited vs. Central Electricity Regulatory Commission & Ors".

3. This Tribunal has passed order on 15th May, 2020 on IA No. 129 of 2019 and allowed the application for amendment of the appeal.

4. In view of the fact that the IA No. 128 of 2019 is similar in all aspects with the 129 of 2019, we are of the considered opinion that the findings of this Tribunal in IA No. 129 of 2019 filed in Appeal No. 253 of 2018 titled "DB Power Limited Vs. Central Electricity Regulatory Commission & Ors. order dated 15.05.2020" shall squarely apply to the present amendment application.

5. Accordingly, amendment application being IA No. 128 of 2019 filed in Appeal No. 225 of 2018 is allowed and stands disposed of in above terms.

Pronounced in the Virtual Court through video conferencing on this 18th day of August, 2020.

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  (Ravindra Kumar Verma)                        (Justice Manjula Chellur)
     Technical Member                                 Chairperson
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REPORTABLE/NON-REPORTABLE

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IN THE APPELLATE TRIBUNAL FOR ELECTRICITY (Appellate Jurisdiction) APPEAL NO. 225 OF 2018 & IA Nos. 1512 & 1514 OF 2019 Dated: 18th August, 2020 Present: Hon'ble Mrs. Justice Manjula Chellur, Chairperson Hon'ble Mr. Ravindra Kumar Verma, Technical Member In the matter of:

> DB Power Limited .... Appellant(s) Versus Central Electricity Regulatory Commission & Ors. .... Respondent(s) Counsel on record for the Appellant(s) : Deepak Khurana Tejasv Anand Vineet Tayal Abhishek Bansal Counsel on record for the Respondent(s): Vallinayagam for R.2 Ranjitha Ramachandran Poorva Saigal Anushree Bardan Shubham Arya Arvind Dubey for R.3 Aashish Anand Bernard Paramhans Sahani for R.5 ORDER Proceedings in this matter are conducted through video conferencing.
>
> Additional reply to the amended appeal may be filed within three weeks i..e, on or before 09.09.2020 with advance copy to the other side. Thereafter, rejoinder may be filed on or before 24.09.2020 with advance copy to the other side.
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> List the matter on 14.10.2020 before the regular bench.

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     (Ravindra Kumar Verma)                     (Justice Manjula Chellur)
        Technical Member                              Chairperson
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